

25STCV23946 25STCV23946

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 25STCV23946 Hearing Date: September 22, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: Tuesday, September 22, 2026

Case Name: Jane Doe D.H. v. Los Angeles Unified School District, et al.

Case No.: 25STCV23946

Motion: Motion to Compel Independent Medical Examination

Moving Party: Defendant Los Angeles Unified School District

Responding Party: Plaintiff Jane Doe D.H.

Notice: OK

Ruling: The motion to compel an independent medical examination of Plaintiff is GRANTED.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.

BACKGROUND

Plaintiff Jane Doe D.H. was a student on a Los Angeles Unified School District campus, Washington Preparatory High School, in 2009-2010 school year, and was subjected to sexual assault by employees Defendant Raul Preciado and Corey Hogan.

On August 14, 2025, Plaintiff filed a complaint for Childhood Sexual Abuse, Intentional Infliction of Emotional Distress, Negligent Hiring Supervision and Retention of Unfit Employees, Failure to Report Suspected Child Abuse, Negligent Supervision of a Minor, and Negligence.

DISCUSSION

APPLICABLE LAW

Absent a stipulation, a court order is required for a mental examination. (Code Civ. Proc., § 2032.320, subd. (a).) The examination will be limited to whatever condition is “in controversy” in the action. The standard for good cause requires the moving party to produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.) Past injuries outside the subject controversy are not subject to examination. (Doyle v. Superior Court (1996) 50 Cal.App.4th 1878, 1887; Reuter v. Superior Court (1979) 93 Cal.App.3d 332, 341.)

The examination may not include any diagnostic test or procedure that is painful, protracted, or intrusive and the examination is conducted at a location within 75 miles of the residence of the examinee. (Code Civ. Proc., § 2032.220, subd. (a).) “This motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2032.250, subd. (a).)

APPLICATION TO FACTS

Meet and Confer

Moving party demonstrates a sufficient meet and confer effort. [Declarations of Ryan Miller.]

Scope of Examination

LAUSD moves to compel a mental examination of Plaintiff based on the claim of ongoing psychological trauma impacting quality of life. Plaintiff in opposition first challenges the motion as unnecessarily premature given the October 2028 trial date. Plaintiff agrees to submit to a mental examination closer to the trial date. Plaintiff additionally challenges the scope of the motion as overbroad, with a request for limitation to the sexual assault. Plaintiff requests production of all raw data from the examination. LAUSD in reply reiterates the right to conduct the examination and denies any valid basis for delay simply based on the trial date or other extrinsic life events. LAUSD maintains the examination is proper and follows standard protocol.

The emotional distress injury claims are indisputably placed at issue by Plaintiff, and therefore relevant. Plaintiff was provided with sufficient notice of an intent to proceed with the IME and seek a potential protective order, but elected to simply oppose the motion. The opposition lacks a sufficient basis for a deferred examination. Delays due to convenience or other personal preferences is not a basis for denial of a properly sought examination. Nothing in the opposition otherwise establishes any disqualification of the examining psychologist or impropriety of the tests identified as part of normal protocol for an examination of this nature.

As for the breadth of the background questioning, the motion itself lacks specific address of the necessity for examination into sexual histories beyond the perpetrator. Discovery shall be limited to the sexual assault trauma and psychological damages arising from the incidents. “In any civil action alleging conduct that constitutes sexual harassment, sexual assault, or sexual battery, any party seeking discovery concerning the plaintiff’s sexual conduct with individuals other than the alleged

perpetrator shall establish specific facts showing that there is good cause for that discovery, and that the matter sought to be discovered is relevant to the subject matter of the action and reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.220, subd. (a).) The examination shall not inquire into any additional personal information unless Plaintiff puts any additional information at issue.

The motion is therefore GRANTED. The examination is ordered to proceed. The court declines to impose any waiver of the no-show fee. Plaintiff brought the action and is expected to allow Defendant a fair opportunity to examine the claims.

The parties are to meet and confer within the next 15 days and establish a mutually convenient date within the next 60-days. The parties may also establish agreed upon written parameters as to the scope of information pursuant to the guidance of this order, but Plaintiff otherwise offers no challenge to the proposed test. The court finds no support for any finding of a protracted unnecessary examination, so any agreement will be limited to the scope of the subject matter questioning. The parties may submit a written stipulation to the court, if necessary, for potential later enforcement regarding the date and time, provision of raw data, and including payment of missed fees.

Plaintiff will be entitled to all raw data. LAUSD presents no objection.

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand for a physical examination, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2032.240, subd. (c), 2032.250, subd. (b).) Neither party makes a request for sanctions.

CONCLUSION

Defendant LAUSD's motion for independent medical examination of Plaintiff Jane Doe D.H. is GRANTED subject to terms and condition to be determined in a meet and confer effort.

LAUSD to give notice.

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